

2014 WL 2604449 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Kings County

Toyia WALKER and Gregory McLean, Plaintiffs,

v.

THE CITY OF NEW YORK, Police Officer **James Famiano** (Tax # 936568), Sergeant Florencio Arquer,
Police Officer David Grieco, Police Officer Robert Mayer and Police Officers John Doe 1-10, Defendants.

No. 0007761-2014.
May 23, 2014.

Summons

Law Offices of Wale Mosaku, P.C., Wale Mosaku, 25 Bond Street, 3rd Floor, Brooklyn, New York 11201, (718) 243-0994,
The City of New York, C/O New York City Corporation Counsel, 100 Church Street, New York, N.Y. 10007, for plaintiff(s).

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York April 8, 2014

TOYIA WALKER and GREGORY MCLEAN (hereinafter "plaintiffs"), by their attorney(s), THE LAW OFFICES OF WALE MOSAKU, P.C., complaining of the defendants THE CITY OF NEW YORK, POLICE OFFICER **JAMES FAMIANO** (Tax # 936568), SERGEANT FLORENCIO ARQUER, POLICE OFFICER DAVID GRIECO, POLICE OFFICER ROBERT MAYER and POLICE OFFICERS JOHN DOE 1-10 (collectively referred to as "the defendants"), upon information and belief, allege as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiffs under color of statute, ordinance, regulation, custom; and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiffs by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and by [Title 42 U.S.C. §§ 1982, 1983 and 1985](#); and arising under the law and statutes of the City and/or State of New York.

THE PARTIES

2. At all times material to this complaint, plaintiffs were, and they still are, residents of the City of New York, who at all times material and relevant to this complaint resided, and still reside, in Kings County, City and State of New York.

3. At all relevant times, defendants POLICE OFFICER **JAMES FAMIANO** (Tax # 936568), SERGEANT FLORENCIO ARQUER, POLICE OFFICER DAVID GRIECO, POLICE OFFICER ROBERT MAYER and POLICE OFFICERS JOHN

DOE 1-10 (collectively referred to as “defendant officers”), of the New York City Police Department (hereinafter “NYPD”), upon information and belief, were, and still are, law enforcement officers in the employ of the NYPD.

4. At all times herein, the defendant officers were employed as law enforcement officers of the NYPD, and were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York. The defendant officers were the servants, agents, and employees of their co-defendant, the City of New York, so that their acts are imputed to the City of New York and the NYPD.

5. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendant officers, through its Police Department, namely the NYPD, and the actions of the defendant officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.

6. The plaintiffs sue all defendants in their individual and official capacities.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

7. All conditions precedent to filing of this action have been complied with; on June 28, 2013, within ninety days after the claims alleged in this complaint arose, written notice(s) of claim, sworn to by each plaintiff and/or his/her representative, was/were served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts. Plaintiff Toyia Walker's claim was assigned Claim No. 2013P1016933¹. Plaintiff Gregory McLean's claim was assigned Claim No. 2013PI016933.

8. Subsequently, on August 6, 2013, within ninety days after the claims alleged in this complaint arose, written amended notice(s) of claim, sworn to by each plaintiff and/or his/her representative, was/were served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts.

9. At least thirty days have elapsed since the service of the above-mentioned notices of claim, and adjustment or payment of the claims have been neglected or refused.

10. This action, pursuant to New York State and City Law, has been commenced within one year and ninety days after the happening of the event upon which the claims are based.

FACTUAL ALLEGATIONS

11. On or about May 30, 2013, at approximately 06:30 a.m., inside of the plaintiffs' residence described as 580 Sutter Avenue, #1L, Brooklyn, New York 11212, (hereinafter “subject location”), the plaintiffs were illegally and unlawfully arrested by the defendant police officers **James Famiano** (Tax # 936568), Sergeant Florencio Arquer, Police Officer David Grieco, Police Officer Robert Mayer and Police Officers John Doe 1-10 (hereinafter “defendant officers”).

12. That prior to her arrest, the plaintiff Toyia Walker was pottering about her apartment, getting ready to leave the apartment to attend an appointment with her doctor.

13. The plaintiff Toyia Walker's eleven year old daughter, namely Tykeisha Walker was also in the subject premises, getting ready to go to school.

14. That prior to his arrest, the plaintiff Gregory McLean was outside of the subject apartment, in his vehicle, waiting to move it from one side of the street to the other, in order to observe street cleaning rules.
15. The defendant officers forcibly gained entry to the subject apartment when they broke down the front door.
16. Upon gaining entry, one of the defendant officers went straight to Tykeisha Walker's room, and at gunpoint, instructed the young girl to get down on the floor.
17. The other defendant officers then entered into the plaintiffs' room, where the plaintiff Toyia Walker was seated upon her bed, alarmed at the events unfolding before her eyes.
18. The plaintiff Toyia Walker was asked for the "drugs". She responded that the only drugs she had were her prescription medication that was in a drawer of the side table adjacent to her.
19. At this juncture, Tykeisha Walker was distraught, and screaming and crying for her mother.
20. The plaintiff Toyia Walker and her daughter Tykeisha Walker were then taken to the living room of the subject premises by the defendant officers.
21. The plaintiff Toyia Walker, who at that juncture was in shock, asked the defendant officers if she could take her anti-seizure medication, but was ignored.
22. The defendant officers asked the plaintiff Toyia Walker whether there was anyone else in the subject apartment, and the plaintiff Toyia Walker responded that the plaintiff Gregory McLean was outside, moving their vehicle for street cleaning purposes.
23. At that juncture, the defendant officers exited the subject premises, went out of the building, approached the plaintiff Gregory McLean while he was in his vehicle, instructed him to exit the vehicle at gunpoint, and escorted him back to the subject premises.
24. The defendant officers then searched the subject premises. That after some time, the plaintiffs, who at that time were placed under arrest, were taken out of the subject premises, and taken into a police vehicle, where they were compelled to remain for approximately one hour.
25. At the time of her arrest, the plaintiff Toyia Walker, who suffers from various debilitating medical conditions, including but not limited to scoliosis, informed the defendant officers of said conditions, and asked the defendant officers to be cognizant of that fact when they applied the handcuffs to her wrists.
26. However, the defendant officers applied the handcuffs in such a manner as to aggravate the plaintiff Toyia Walker's pre-existing medical conditions to her back, and cause excruciating pain to her wrists. The defendant officers refused to loosen the handcuffs, despite the plaintiff Toyia Walker's entreaties.
27. Following their arrest(s), the plaintiffs were transported to the 75th police precinct.
28. At approximately 02:00 p.m. on May 30, 2013, the plaintiff Toyia Walker was issued a Desk Appearance Ticket (DAT) for "Criminally Using Drug Paraphenalia in the 2nd Degree" (P.L. 220.50(02)), and released from the precinct.
29. The plaintiff Toyia Walker's DAT was signed by defendant Police Officer **James Famiano**.
30. The plaintiff Toyia Walker's arrest number is "K13649288" The plaintiff Toyia Walker was issued DAT number 075-00919.

31. Pursuant to the above-referenced summons, the plaintiff Toyia Walker was compelled to go to New York City Criminal Court's DAT Part, located at 120 Schemerhorn Street, Brooklyn, New York, on July 12, 2013, in order to defend herself against the trumped up charges.

32. On July 12, 2013, upon arrival at Criminal Court, the plaintiff Toyia Walker was given a document that stated "*Your case is not ready. You will receive a letter when you have a new court date. Please call the New York City Criminal Justice Agency to confirm receipt of this notice, to confirm your present address, or to give a change of address, or to give change of address information*".

33. At approximately 02:00 p.m. on May 30, 2013, the plaintiff Gregory McLean was issued a Desk Appearance Ticket (DAT) for "Criminally Using Drug Paraphenalia in the 2nd Degree" (P.L. 220500 and released from the precinct.

34. The plaintiff Gregory McLean's DAT were signed by defendant Police Officer **James Famiano**.

35. The plaintiff Gregory McLean's arrest number is "K13649293" The plaintiff Gregory McLean's was issued DAT number 075-00920.

36. Pursuant to the above-referenced summons, the plaintiff Gregory McLean was compelled to go to New York City Criminal Court's DAT Part, located at 120 Schemerhorn Street, Brooklyn, New York, on July 12, 2013, in order to defend himself against the trumped up charges.

37. On July 12, 2013, upon arrival at Criminal Court, the plaintiff Gregory McLean was given a document that stated "*Your case is not ready. You will receive a letter when you have a new court date. Please call the New York City Criminal Justice Agency to confirm receipt of this notice, to confirm your present address, or to give a change of address, or to give change of address information*".

38. That subsequently, The defendant Police Officer **James Famiano** signed off on criminal complaints against each plaintiff, wherein he set forth new charges against each plaintiff, as follows:

a. Possession of Pistol Ammunition [AC 10131(I)(3)]; and

b. Unlawful Possession of Marijuana [P.L. 221.05].

39. The Kings County Criminal Court Docket number for the plaintiff Toyia Walker is 2013KN059580.

40. The Kings County Criminal Court Docket number for the plaintiff Gregory McLean is 2013KN059574.

41. The above-referenced criminal court actions instituted against each plaintiff are currently pending.

**CAUSE(S) OF ACTION ON BEHALF OF THE PLAINTIFFS: FALSE ARREST
AND FALSE IMPRISONMENT UNDER 42 U.S.C § 1983/NEW YORK STATE LAW**

42. By this reference, the plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 41 of this complaint as though fully set forth herein.

43. The above-described respective arrest, detention and imprisonment of the plaintiffs by the defendant officers was/were without just or probable cause and without any warrant or legal process directing or authorizing the plaintiffs arrest or subsequent detention.

44. As a result of each plaintiffs above-described false arrest and detention by the defendant officers, each plaintiff has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him/her, was prevented from attending to his/her necessary affairs, and have been caused to incur legal expenses, and have been otherwise damaged in his/her character and reputation.

45. Consequently, each plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

46. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendant officers acts as described above.

47. This action falls within one or more of the exceptions of the New York State [Civil Practice Law and Rules §1602](#).

**CAUSE OF ACTION ON BEHALF OF THE PLAINTIFFS: DENIAL OF A CONSTITUTIONAL
RIGHT TO A FAIR TRIAL UNDER [42 U.S.C § 1983](#) DUE TO THE FABRICATION OF EVIDENCE**

48. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 47 of this complaint as though fully set forth herein.

49. The defendant officers fabricated evidence and/or created false evidence against the plaintiffs.

50. The defendant officers forwarded fabricated and false evidence/false information to the prosecutors in the Kings County District Attorney's office.

51. The defendant officers misrepresented and falsified evidence throughout all phases of the criminal proceeding.

52. The defendant officers misrepresented and falsified evidence to the prosecutors in the Kings County District Attorney's office.

53. The defendant officers withheld exculpatory evidence from the prosecutors in the Kings County District Attorney's office.

54. The defendant officers did not make a complete statement of facts to the prosecutors in the Kings County District Attorney's office.

55. By creating false evidence against the plaintiffs, forwarding false evidence and information to the prosecutors; and by providing false and misleading testimony throughout the criminal proceedings, which directly resulted in the plaintiffs being deprived of their liberty, the defendant officers violated the plaintiffs constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments to the United States Constitution.

56. As a consequence of the defendant officers' actions, the plaintiffs suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and their constitutional rights were violated.

57. The plaintiffs hereby demands compensatory damages and punitive damages, in an amount to be determined at trial, against each of the defendants, individually and severally.

**CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF TOYIA
WALKER: EXCESSIVE FORCE UNDER [42 U.S.C § 1983](#)**

58. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 57 of this complaint as though fully set forth herein.

59. The level of force employed against the plaintiff Toyia Walker by the defendant officers was objectively unreasonable and in violation of each of said plaintiffs constitutional rights.

60. As a result of the aforementioned conduct of the defendants, the plaintiff Toyia Walker was subjected to excessive force, resulting in serious, severe, and permanent physical injuries.

CAUSE OF ACTION ON BEHALF OF THE PLAINTIFFS: FAILURE TO INTERVENE UNDER [42 U.S.C § 1983](#)

61. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 60 of this complaint as though fully set forth herein.

62. Each and every individual defendant had an affirmative duty to intervene on each plaintiff's behalf to prevent the violation to his/her constitutional rights, as more fully set forth above.

63. The individual defendants failed to intervene on each plaintiff's behalf to prevent the violation of his/her constitutional rights, despite having had a realistic and reasonable opportunity to do so.

64. As a consequence of said defendants' actions, each plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and his/her constitutional rights were violated. Each plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against each of the defendants, individually and severally.

CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF TOYIA WALKER: ASSAULT AND BATTERY

65. Each plaintiff repeats and realleges paragraphs 1 through 64 as if each paragraph is repeated verbatim herein.

66. At the time of the incident, the plaintiff Toyia Walker did not challenge nor resist the defendants, nor engage in any threatening behavior towards the defendants.

67. However, as set forth above, the defendants assaulted the plaintiff Toyia Walker, battered t the plaintiff Toyia Walker, and subjected the plaintiff Toyia Walker to excessive force and summary punishment.

68. Consequently, the plaintiff Toyia Walker has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against the defendants, individually and severally.

69. The defendants were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendants acts as described above.

70. This action, upon information and belief, falls within one or more of the exceptions of [CPLR 1602](#).

WHEREFORE, each plaintiff prays for judgment against the defendants, individually and severally, as follows: for compensatory damages against each defendant in an amount to be proven at trial; for exemplary and punitive damages against each defendant in an amount to be proven at trial; for costs and expenses of suit herein, including each plaintiffs reasonable

attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York April 8, 2014

LAW OFFICES OF WALE MOSAKU, P.C.

By:

Wale Mosaku

Attorney for the Plaintiffs

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Brooklyn, N.Y. 11201

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Footnotes

- 1 Subsequently, another claim number was generated for the plaintiff Toyia Walker by the Comptroller's office, specifically 2013P1025162.